

#	Case Name	
1	C. vs. County of Orange 2024-01436607	Petition for Writ Court will argument for both parties.
2	CCS Contractor Equipment & Supply, LLC vs. KB Steel & Building Products, a California corporation 2025-01490912	Motion to Compel Production Continued to 11/02/2026
3	CommerceWest Bank vs. Q Technology, Inc. 2025-01529514	1. Motion to Set Aside/Vacate Default 2. Motion to Set Aside/Vacate Default Off Calendar
4	Enriquez Tapia vs. Country Villa Plaza Convalescent Center	Motion to Compel Deposition (Oral or Written) Defendant Santa Ana Healthcare & Wellness Centre LP's ("Defendant") motion to compel deposition of Plaintiff Victor Tapia ("Plaintiff"), and for monetary and terminating sanctions, is granted in part and denied in part. Defendant's request for an order compelling Plaintiff to appear for his deposition and for an award of monetary

	2022-01276368	sanctions is granted. Defendant’s request for a terminating sanction is denied. “The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action ... to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280, subd. (a).) A party that noticed a deposition may move for an order compelling the deponent’s attendance if the deponent had been served with a deposition notice and, without having served a valid objection, the deponent “fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).) The motion to compel “shall” be accompanied by a declaration “stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code of Civ. Proc. § 2025.450, subd. (b)(2).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue.” (<i>Leko v. Cornerstone Bldg. Inspection Serv.</i> (2001) 86 Cal.App.4th 1109, 1124; see also Weil & Brown, Cal. Prac. Guide: Civil Procedure before Trial (The Rutter Group 2025) at ¶ 8:813.2 [good faith inquiry includes attempt to resolve the issue by rescheduling the deposition].) If documents were requested, the motion must be accompanied by a showing of “good cause”—i.e., declarations containing specific facts justifying inspection of the documents described in the notice. (Code Civ. Proc. § 2025.450, subd. (b)(1).) If the moving party demonstrates good cause, then the opposing party must justify any objections. (<i>Kirkland v Superior Court</i> (2002) 95 Cal. App. 4th 92, 98.) Here, Defendant has proffered uncontroverted evidence showing it served Plaintiff with the Fifth Amended Deposition Notice, and that Plaintiff did not object to the notice but did not appear for his duly noticed deposition (or produce any of the documents requested therein). Thereafter, Defendant’s counsel reached out to Plaintiff to get his dates of availability, but Plaintiff did not respond. Plaintiff has not opposed this motion, either. Additionally, Defendant has shown there is “good cause” for the nine categories of documents that Plaintiff was requested to produce at his deposition. Defendant requested Plaintiff produce basic records, such as medial reports, bills,
--	---------------	--

		witness statements, and other documents that relate to Plaintiff's alleged injury and damages. Accordingly, the Court grants the motion for an order compelling Plaintiff to comply with the deposition notice and orders Plaintiff to appear for his deposition within 14 days of the notice of ruling, or on such other date as agreed to in writing by Defendant. In connection with the motion, Defendant is awarded \$3,387.06 in attorneys' fees and costs. (Code Civ. Proc., §§ 2023.010, 2023.030.) The Court denies Defendant's request for a terminating sanction. As noted in prior rulings (see ROA 305), Defendant has not met its burden of showing that it would be appropriate for the Court to impose the "ultimate sanction of termination" at this juncture. (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145.) Defendant shall give notice of the ruling.
5	First Foundation Inc. vs. Keller 2025-01493220	1. Motion to Compel Production 2. Motion to Compel Production 3. Motion to Compel Production 4. Motion to Compel Production Continued to 09/28/2026
6	Le vs. Dang 2024-01429637	Motion to Set Aside/Vacate Default and Judgment Continued to 11/09/2026
7	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	Motion to Compel Production Stayed per appeal.
8	Martinez vs. Fritzsche	Motion to Compel Deposition (Oral or Written)